

An Act

ENROLLED HOUSE
BILL NO. 3143

By: Cornwell, Turner, Lepak,
Wolfley and Roberts of the
House

and

Alvord of the Senate

An Act relating to medical marijuana; amending Section 2, Chapter 342, O.S.L. 2022, as amended by Section 6, Chapter 168, O.S.L. 2023, and Section 2, Chapter 342, O.S.L. 2024 (63 O.S. Supp. 2025, Sections 427.14a and 427.14c), which relate to the Oklahoma Medical Marijuana and Patient Protection Act; modifying dates for moratorium; deleting requirement to review and process applications by certain date; updating internal effective dates; providing restrictions for submitting applications to transfer ownership of medical marijuana businesses; requiring completion of administrative actions or appeals prior to submitting transfer applications; establishing time limitation for submitting applications following license annulments, revocations, or suspensions; deleting time limitation and requirement for submitting new applications; deleting certain refund requirement; and providing an effective date.

SUBJECT: Medical marijuana

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 2, Chapter 342, O.S.L. 2022, as amended by Section 6, Chapter 168, O.S.L. 2023 (63 O.S. Supp. 2025, Section 427.14a), is amended to read as follows:

Section 427.14a. A. Beginning ~~August 1, 2022~~ August 1, 2026, and ending ~~August 1, 2026~~ August 1, 2028, the Oklahoma Medical Marijuana Authority shall, ~~based on the number of current medical~~

~~marijuana business licenses for dispensaries, processors, and commercial growers,~~ declare and ~~establish a~~ extend the moratorium on processing and issuing new medical marijuana business licenses for dispensaries, processors, and commercial growers. The Executive Director of the Authority shall be authorized to terminate the moratorium at any time prior to ~~August 1, 2026~~ August 1, 2028, if the Executive Director determines that all pending licensing reviews, inspections, or investigations have been completed by the Authority.

B. The provisions of this section shall not apply to the renewal of a medical marijuana business license for a dispensary, processor, or commercial grower under the provisions of Section 427.14 of this title or to the issuance of a medical marijuana business license necessitated by a change in the ownership or location of a medical marijuana dispensary, medical marijuana processor, or medical marijuana commercial grower; provided, however, the Authority shall be authorized to deny the request for issuance of a medical marijuana business license due to a change in ownership if the licensee is subject to any disciplinary action that may necessitate the revocation, suspension, or nonrenewal of the medical marijuana business license.

~~C. The Authority shall review and process applications for medical marijuana business licenses for dispensaries, processors, and commercial growers if applications were received on or before August 1, 2022.~~

~~D.~~ The Authority shall promulgate rules as necessary to implement the provisions of this section.

SECTION 2. AMENDATORY Section 2, Chapter 342, O.S.L. 2024 (63 O.S. Supp. 2025, Section 427.14c), is amended to read as follows:

Section 427.14c. A. ~~After the effective date of this act, no~~ No medical marijuana business shall be transferred without written approval of an application by the Oklahoma Medical Marijuana Authority.

B. A licensee intending to transfer ownership of a medical marijuana business shall submit an application to the Authority. Upon approval by the Authority, the applicant shall submit all necessary documentation to the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control (OBNDD) consistent with an application

for a registration pursuant to the Uniform Controlled Dangerous Substances Act and rules promulgated by OBNDD, including the approved application issued by the Authority. The medical marijuana business license and the OBNDD registration of the original owner shall terminate fifteen (15) business days after issuance of the new OBNDD registration. Upon approval of the new registration by OBNDD, the prior owner and new owner shall effectuate the transfer of medical marijuana products utilizing the state authorized seed-to-sale tracking system within fifteen (15) business days.

C. Nothing in this section shall prevent the Authority from denying an application, or the OBNDD from denying an application, to register pursuant to the laws and rules of this state. In addition, any medical marijuana business licensee intending to transfer ownership of a medical marijuana business shall be prohibited from submitting an application for said transfer if the licensee is subject to any administrative action that may necessitate a revocation, suspension, or nonrenewal of the medical marijuana business license or OBNDD registration. Any pending administrative action or appeal of an adverse determination by the Authority or by the OBNDD concerning the medical marijuana business licensee or registrant shall be completed in full prior to submitting an application for a transfer of the medical marijuana business. If the medical marijuana business license or OBNDD registration is annulled, revoked, or suspended due to an administrative action, the medical marijuana business licensee shall be prohibited from applying for a transfer of the medical marijuana business for not less than six (6) months after completion of the annulment, revocation, or suspension term.

Application or registration denial shall not affect the existing licensee and registrant. The existing licensee and registrant shall be required to submit timely and sufficient renewal applications for the business to continue to operate during the pendency of any business transfer.

D. Nothing in this section shall authorize any new owner to take possession of medical marijuana, medical marijuana concentrate, or medical marijuana product or exercise control over any activities involving the medical marijuana business unless and until the application has been approved by the Authority and the new ownership is registered with OBNDD.

E. Nothing in this section shall prohibit the prospective new owners from being employed by the current owner during the transfer

process so long as the prospective new owner holds all proper employee credentials in accordance with Section 427.14b of ~~Title 63 of the Oklahoma Statutes~~ this title.

F. The new medical marijuana business owner shall provide the Authority with a detailed inventory of any and all items enumerated in the Oklahoma Medical Marijuana and Patient Protection Act including, but not limited to, all seeds, plant tissue, clones, plants, usable medical marijuana or trim, leaves, and other plant matter, batches of extract, medical marijuana, medical marijuana concentrate, and medical marijuana products upon taking control of the business.

G. Any attempt to transfer a medical marijuana business, medical marijuana, medical marijuana concentrate, or medical marijuana products of a medical marijuana business without approval from the Authority shall be grounds for revocation or nonrenewal of the license and denial, revocation, or nonrenewal of current or future licenses or license applications with ownership held by any such person involved in the unlawful transfer.

H. The application fee shall be the annual license or application fee established under Section 427.14 of ~~Title 63 of the Oklahoma Statutes~~ this title for medical marijuana business license types.

~~I. Any medical marijuana business with a pending application to transfer a business license on the effective date of this act shall have thirty (30) days from the effective date of this act to submit a new application pursuant to this section. The Authority shall refund the application fee to any applicant with a pending application to transfer upon receipt of the new application.~~

~~J.~~ The Authority shall promulgate rules necessary for the approval and denial of transfers of medical marijuana businesses.

SECTION 3. This act shall become effective August 1, 2026.

Passed the House of Representatives the 25th day of February,
2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____